

the authorities, we shall find there is very little ground in support of the position; and it is now well settled, that a voluntary covenant, notwithstanding the solemnity of the seal, will *not* be specifically executed (*f*).

* 28. **Meritorious consideration.** — It has also been [*81] sometimes supposed that where the trust is imperfectly created, yet the Court, without proof of *valuable* consideration, will act upon *meritorious* consideration, as payment of debts, or provision for a wife or child (*a*).

Re. 158; Beard v. Nutthall, 1 Vern. 427; Husband v. Pollard, cited Randal v. Randal, 2 P. W. 467; Vernon v. Vernon, 2 P. W. 504; Goring v. Nash, 3 Atk. 186, 2d ground; S. C. cited 1 Ves. 513; Stephens v. True-man, 1 Ves. 73; and see Williamson v. Codrington, 1 Ves. 511; Hervey v. Audland, 14 Sim. 531.

(*f*) Hale v. Lamb, 2 Eden. 204, per Lord Northington; Fursaker v. Robinson, Pr. Ch. 475; Evelyn v. Templar, 2 B. C. C. 148; Coleman Sarel, 3 B. C. C. 12; Jefferys v. Jefferys, Cr. & Ph. 138; Meek v. Kettlewell, 1 Hare, 474, per Sir J. Wigram; Fletcher v. Fletcher, 4 Hare, 74; per *eundem*; Newton v. Askew, 11 Beav. 145; Dillon v. Coppin, 4 M. & Cr. 647; Kekewich v. Manning, 1 De G. M. & G. 188; Denning v. Ware, 22 Beav. 134.

But a voluntary covenant to pay a sum to A. in trust for B. has been allowed to create a debt in favour of B. Fletcher v. Fletcher, 4 Hare, 67; Ward v. Audland, 16 M. & W. 862; Cox v. Barnard, 8 Hare, 310; Williamson v. Codrington, 1 Ves. 511; and see Bridge v. Bridge, 16 Beav. 320. But as the ground of this is, that the covenant is perfect at law and the covenantee could recover upon it, it seems to follow that where only *nominal* damages would be given at law, a Court of Equity would not give more.

A voluntary *bond* or *covenant* creates a debt, which will be paid before legatees, and even at the expense of

specific legatees, Patch v. Shore, 2 Drew. & Sm. 589; though after creditors for value, Watson v. Parker, 8 Beav. 288; Denning v. Ware, 22 Beav. 188; Hales v. Cox, 32 Beav. 118; and before interest allowed by the general orders of the Court on debts not carrying interest, Garrard v. Din-orben, 5 Hare, 213.

And the same principle has been applied to a voluntary promissory note, Dawson v. Kearton, 3 Sm. & Gif. 191. But though a voluntary promissory note can, if circulated, be recovered upon at law by a *bonâ fide* holder, yet it is conceived that the original payee cannot recover if the maker prove want of consideration; and if this be so, then, as equity follows the law, this debt should not be allowed in equity; see Vez v. Emery, 5 Ves. 541; Hill v. Wilson, 8 L. R. Ch. App. 901; Curteis v. Adams, W. N. 1875, p. 53. In one case a person gave his promissory note to a trustee, for the settlor's natural daughter, and deposited the title deeds of an estate in the hands of the trustee to secure the debt, and the M. R. held that a valid trust had been created of the amount. Arthur v. Clarkson, 35 Beav. 458.

A bond or covenant which is voluntary at first, may acquire support from valuable consideration by matter *ex post facto*. Payne v. Mortimer, 1 Giff. 118; 4 De G. & J. 447.

(*a*) A child may plead meritorious consideration as against the parent, but of course a parent cannot plead